

25STCV35884 25STCV35884

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-14

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BACKGROUND

This case is an employment matter.

Plaintiff Angela To was employed by Defendant Team ABC, LLC. While employed

Plaintiff alleges that she was subjected to unlawful harassment, discrimination, hostility, and retaliation.

On December 9, 2025, Plaintiff filed a complaint against Defendants Team ABC, LLC and Ajay Beri. The complaint alleges fourteen employment-related causes of action stemming from the facts alleged above.

On March 12, 2026, Defendant Team ABC, LLC filed a Motion to Compel Arbitration ("Motion").

On June 30, 2026, Plaintiff filed an opposition.

No reply has been filed.

TENTATIVE RULING

Defendant's Motion to Compel Arbitration is DENIED.

LEGAL STANDARD

A party to an arbitration

agreement may summarily move or petition the court for an order compelling another non-compliant party to arbitrate their covered claims. (Code Civ. Proc., §§ 1281.2, 1290.2; 9 U.S.C. §§ 4, 6.)

California law, like

Federal law, reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) “To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.” (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967 [internal citation omitted].)

“[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exists at law or in equity for the revocation of any contract.’” (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 569; *Morgan v. Sundance* (2024) 596 U.S. 411, 419.)

On petition of a party to

an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that “when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.”].)

The petitioner bears the

burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of proving any fact necessary to its defense by the evidentiary standard. (See *Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579.)

Finally, “[i]f a court of

competent jurisdiction, whether in this State or not, has ordered arbitration

of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) And similarly, under the FAA, a court is required to stay the proceedings for a case that has been referred to arbitration, upon application of one of the parties, during the pendency of such arbitration. (9 U.S.C. § 3.)

EVIDENTIARY

OBJECTIONS

Plaintiff filed several objections to Ajay Beri’s declaration. The Court rules on the objections as follows:

SUSTAINED: Nos. 3-5, 7-8
(Lack of Personal Knowledge)

OVERRULED: Nos. 1, 2, 6

Ajay Beri states that he is one of Defendant’s “members.” (Beri Decl., ¶ 3.) Beri states that he is aware of Defendant’s onboarding procedures, its use of arbitration agreements, and its recordkeeping systems. (Ibid.) He further states that as part of the onboarding process, Defendant requires its employees to complete certain documents “through a secure online portal via Paychex/Oasis.” (Id., ¶ 5.) Beri then goes on to purport to describe the documentation process with no indication of the basis for his knowledge of the online portal run by another company. For this reason, the Court sustains the objections to paragraphs six through eight, ten and eleven of the Beri declaration.

DISCUSSION

I. Existence of Arbitration Agreement

The Court holds that Defendant has not met its burden to show that there is a valid arbitration agreement between the parties.

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164-65 (*Gamboa*).) This can be done “by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Id.* at 165 [citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 219].) Alternatively, this burden can be met by setting forth the agreement's arbitration provisions in the motion. (See *Gamboa, supra*, 72 Cal.App.5th at p. 165.)

Once the moving party meets their burden, the opposing party may produce evidence challenging the authenticity of the document. (See *ibid.*) The opposing party may do so by “[testifying] under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement.” (*Ibid.*) If this burden is met, the burden shifts back to the moving party to prove the contract is authentic, including the authenticity of the signatures. (See *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 845-46.) Doubts are resolved in favor of arbitrability and ordinary rules of contract interpretation (e.g., resolve doubts against the drafter) apply. (See *Greenspan v. LADT, LLC* (2010) 185 Cal.App.4th 1413, 1437.)

Here, Defendant has set forth the agreement's arbitration provision and attached a copy of the agreement itself. (Motion, p. 6:8-12; *Beri Decl., Exh. A*.) Therefore, Defendant has met its initial burden of proving the existence of a valid arbitration agreement. (See *Gamboa, supra*, 72 Cal.App.5th at pp. 164-65.)

A.

Authentication
of Agreement

In opposition, Plaintiff disputes the authentication of the agreement asserting that *Beri* lacks personal knowledge to authenticate the purported agreement. (See *Opposition*, pp. 9:27-11:9.) As demonstrated in the prior section, the Court agrees. (See *Evidentiary Objections*.) *Beri* provides no basis for his purported knowledge of the described online portal run by a third party.

Further, Plaintiff submits

a declaration stating that she does not recognize the purported arbitration agreement, and does not recall ever receiving, reviewing or signing the agreement and denies agreeing to arbitrate any disputes relating to her employment with Defendant. (Declaration of Angela To, ¶¶ 3, 8.) She declares she was never told she was being asked to sign any arbitration agreement and was never to her knowledge provided with a copy of any signed arbitration agreement. (Id., ¶¶ 3, 4.) Notably, Plaintiff's counsel declares that her office sent a written request to Defendant Beri for Plaintiff personnel file and every document Plaintiff signed during her employment and Defendant did not provide the purported arbitration agreement. (Declaration of Nikka Maleki, ¶¶ 3, 4.) Finally, Defendant Beri indicates in his declaration that Plaintiff was provided with the arbitration agreement during her onboarding process (see Beri Decl., ¶ 5) but as Plaintiff notes in her declaration, the purported arbitration agreement has a date in December of 2020 and Plaintiff had her onboarding process in 2016. (To Decl., ¶5.)

Accordingly, Plaintiff has met her burden of challenging the authenticity of the agreement. (See Gamboa, supra, 72 Cal.App.5th at p. 165.)

Defendant did not file a reply or provide any further evidence showing that the agreement is authentic, including the authenticity of the signatures. The Court finds that Defendant has therefore failed to meet its ultimate burden to show a valid arbitration agreement.

While Plaintiff raises additional issues including the fact that Defendant did not sign the purported arbitration agreement and is not identified by name, the Court does not need to reach these issues in light of Defendant's failure to meet its burden to prove the existence of an authentic arbitration agreement.

CONCLUSION

For the foregoing reasons, Defendant's Motion to Compel Arbitration is DENIED.